

1 A. Yes.

2 Q. And you also told Jordan Galbraith that the
3 defendant got up several times during the night, didn't you?

4 A. Honestly, I don't remember speaking with Jordan
5 Galbraith at all about the incident.

6 Q. Do you remember telling Nancy Brown and Randy
7 Meyer that later in the day, after this incident happened in
8 November of 2005, later on that Saturday that Jordan asked
9 during a question-and-answer session, what if someone came to
10 church and molested someone, would they go to hell?

11 A. I do remember that question, yes.

12 MS. JONES: No further questions.

13 THE COURT: Any redirect?

14 MR. REGAN: No, ma'am. Thank you.

15 THE COURT: Thank you for your testimony.
16 You may step down. Defendant's next witness.

17 MR. REGAN: Judge, she'll be right in.

18 **SUSAN MOORE,**
19 **having been duly sworn to tell the truth, the whole truth and**
20 **nothing but the truth, testified as follows:**

21 **DIRECT EXAMINATION**

22 **BY MR. REGAN:**

23 Q. Sue, speak up. State your name for the court and
24 jury.

25 A. Susan Moore.

1 Q. You, of course, are Scott's wife?
2 A. Yes.
3 Q. Preston and Kirsten's mom?
4 A. Yes.
5 Q. What's your occupation generally?
6 A. I work in health care.
7 Q. What was the last degree you received?
8 A. Sorry?
9 Q. What was the last degree that you received?
10 A. An MBA.
11 Q. From where?
12 A. Baker University.
13 Q. When?
14 A. On May 2010 -- it was Saturday.
15 Q. Saturday morning or afternoon?
16 A. Yes.
17 Q. Baldwin City?
18 A. Yes.
19 Q. How long have you and Scott been married?
20 A. It will be twenty-three years, and engaged two
21 years prior to that and dated for five years.
22 Q. How long have you been together total?
23 A. Almost thirty years.
24 Q. Do you do most of the laundry for the family?
25 A. I do.

1 Q. Do you see what clothes your husband wears around
2 the house?

3 A. I do.

4 Q. Have you ever known him to wear a "Night Stalker"
5 T-shirt?

6 A. No.

7 Q. When he goes to summer camp or camp for the Church
8 of the Resurrection, would he wear glasses to the camps?

9 A. No.

10 Q. Have you ever seen your husband possess a "Night
11 Stalker" shirt?

12 A. No.

13 Q. Why didn't he wear glasses when he goes on these
14 camp trips?

15 A. It would just be something to lose. He sleeps in
16 his contacts.

17 Q. I want to ask about some allegations that were
18 made against your husband in Christmas of 2009. You became
19 aware sometime in 2010 that your husband was under
20 investigation for things involving Nick Koch?

21 A. I did.

22 Q. Sometime in 2010 did you become aware that
23 allegations were made of things that supposedly took place in
24 your house in 2009?

25 A. I did.

1 Q. Immediately upon learning of that, did you and
2 your family get together to see where you all were in December
3 of 2009?

4 A. Yes, we did.

5 Q. Did you try to see if Nick Koch had been a
6 houseguest overnight during that month?

7 A. Yes.

8 Q. Was he or was he not a houseguest in 2009 in
9 December?

10 A. He was not.

11 Q. How can you be so sure?

12 A. Because the first two weeks of December were
13 finals, and we have no guests come over during finals so that
14 the kids study well.

15 The next weekend was Scott's company party. We had it
16 that weekend.

17 Q. At the home?

18 A. At our house.

19 Q. Was that party big or little?

20 A. It was the entire company party. I was busy
21 getting that ready. The next week we were out at California
22 at my sister's, and the next week we were back and had
23 visitors over for New Year's Eve.

24 Q. Where does your sister live?

25 A. California.

1 Q. Did you go before Christmas or after Christmas?
2 A. Well, we left before Christmas and came back
3 after.
4 Q. Do you recall how many days before Christmas it
5 would have been?
6 A. We were out there approximately a week.
7 Q. Did you fly out together?
8 A. We did.
9 Q. All four of you?
10 A. Yes.
11 Q. And when you came home, how do you know Nick
12 didn't spend the night sometime after Christmas and New
13 Year's?
14 A. Because we were worn out and just catching up with
15 laundry and getting back into the work routine.
16 Q. Are you as sure of that as you're as sure you are
17 sitting here today?
18 A. Yes, I am.
19 Q. And back in 2010, did you have occasion to look at
20 the family calendar to try to reconstruct what your family was
21 up to in December?
22 A. We did.
23 Q. Were finals over in those days the 18th of
24 December?
25 A. That sounds about right.

1 Q. Had Nick Koch spent the night prior to that time
2 in your life?
3 A. Not that I recall.
4 Q. Had he spent the night after that time in your
5 mind up until May of 2010?
6 A. Not that I recall.
7 Q. Was there a family gathering at your home on New
8 Year's Eve 2009?
9 A. No, we just had some friends over.
10 Q. Are you certain that he did not spend the night
11 that month?
12 A. I am.
13 Q. Let me take you up to May of 2010. Was there a
14 special occasion that month?
15 A. There was my graduation.
16 Q. May 18th?
17 A. Yes.
18 Q. Did you make it clear to Nick that you were
19 graduating that day?
20 A. Yes.
21 Q. Was there plans to celebrate Nick's birthday that
22 night, the night before graduation?
23 A. There were plans to celebrate Preston's birthday.
24 Q. Yes. Preston at your home and a restaurant and
25 the movie?

1 A. Yes.

2 Q. Did you make it clear to Preston's guests, Nick

3 and Marcus and a few other two boys that you had the big

4 graduation plans the next day?

5 A. We did.

6 Q. Did you all go to dinner?

7 A. We did.

8 Q. Where did you go?

9 A. Old Chicago.

10 Q. Did you go to a movie?

11 A. We did.

12 Q. Where?

13 A. At AMC Olathe 30.

14 Q. Did you see it together?

15 A. We did.

16 Q. What movie did you see; do you remember?

17 A. Iron Man.

18 Q. Did Kirsten accompany you?

19 A. Yes.

20 Q. Were you all in one vehicle or two?

21 A. Scott and I were in one vehicle with the boys, and

22 Kirsten joined a few minutes later in another vehicle.

23 Q. What kind of car did you guys drive?

24 A. An Acura MDS.

25 Q. What kind of car did Kirsten drive?

1 A. She had a Volvo.

2 Q. On the way home from the movie theater to home,

3 was there a discussion between Nick Koch and your husband?

4 A. There was.

5 Q. Listen carefully to my question. Was the

6 discussion between Nick and your husband about some trouble

7 Nick had gotten into in school?

8 A. Yes.

9 Q. Did Scott tell him that he wasn't pleased with

10 what he heard and Nick ought to quit messing around and

11 getting into trouble?

12 A. He did.

13 Q. What was Nick's reaction to your husband after

14 that discussion?

15 A. He was not pleased.

16 Q. What did he say to you, or what did he say or do

17 that let you know he thought that?

18 A. By his body language. He wouldn't look at Scott

19 or myself and just acted like a scolded child.

20 Q. Did that behavior get over with, or did it persist

21 through the night?

22 A. It ended when Nick came up and asked if he could

23 stay late.

24 Q. Let's talk about that conversation. Was that a

25 conversation between Nick and his mother on your telephone?

1 A. Yes.

2 Q. Were you present nearby?

3 A. Yes.

4 Q. Who initiated the call?

5 A. Nick.

6 Q. Who was asking if Nick could spend the night at

7 your house?

8 A. He was.

9 Q. Did you your husband later get on the phone?

10 A. He did.

11 Q. At whose request?

12 A. Nick's request.

13 Q. Could you hear Scott's side of the conversation?

14 A. I could.

15 Q. At any time did you ever hear Scott pleading with

16 Nick Koch's mom to let him spend the night?

17 A. No.

18 Q. Was he begging for that to happen?

19 A. No. We had to get up early the next morning.

20 Q. Would you have rather nobody spend the night so

21 you could get up and attend your graduation?

22 A. Yes.

23 Q. How long was the conversation between Scott and

24 Ms. Koch?

25 A. Two seconds from what I heard.

1 Q. Now, let me take you back real quick to December
2 of '09. Did you invite Ms. Koch in your home and show her all
3 your Christmas decorations that month?
4 A. Not that I recall.
5 Q. Have you ever called her "Cookie"?
6 A. No.
7 Q. Has your husband, in your presence, ever called
8 her "Cookie," like you're real close, or that's sort of a
9 nickname?
10 A. No.
11 Q. At any rate, it was decided that it would be okay
12 for Nick to spend the night with Marcus?
13 A. Correct.
14 Q. Was there a basement in your home?
15 A. Yes.
16 Q. What do the boys do there?
17 A. They were playing Xbox.
18 Q. Did they do so that night?
19 A. They did.
20 Q. What time did they come up; do you remember?
21 A. Three o'clock.
22 Q. Where were you at the time?
23 A. I was in one of our recliners.
24 Q. And does Scott have one, his and hers?
25 A. We have his-and-her recliners.

1 Q. Were you watching a TV show or movie?
2 A. We were.
3 Q. Had you fallen asleep?
4 A. I had.
5 Q. Had Scott fallen asleep?
6 A. I believe so.
7 Q. Prior to the incident alleged in May, had Nick
8 Koch or his folks made any complaints about something bad
9 happening between Scott and Nick?
10 A. No.
11 Q. Prior to May of 2010, had Nick or his folks ever
12 made a complaint to you about something inappropriate done by
13 your husband to Nick?
14 A. No.
15 Q. Did you notice anything unusual between Nick and
16 Scott at any time he was in your house between Christmas '09
17 and May 2010?
18 A. No.
19 Q. Did your wife and mother's intuition kick in and
20 say: Something doesn't feel right?
21 A. No.
22 Q. Was Nick a frequent afternoon guest at your home
23 after school?
24 A. No.
25 Q. Mostly a weekend thing?

1 A. Yes.

2 Q. Did you see the two boys together at Scouts?

3 A. I did.

4 Q. Every week?

5 A. Almost every week.

6 Q. What day of the week are the Scout meetings?

7 A. I believe they were Monday or Tuesday nights.

8 Q. Did the two kids hang around together at Scouts?

9 A. Yes.

10 Q. And did they go to Scout trips together?

11 A. Yes.

12 Q. What is Preston's actual birth date?

13 A. 5/21.

14 Q. About what time did you get up and go to bed?

15 A. I went to bed probably around -- well, if they

16 came up at three, probably about 3:20.

17 Q. Did you guys have a three o'clock rule we've heard

18 earlier in the case?

19 A. We did. We allowed them to play Xbox until three

20 o'clock.

21 Q. What time is it that the boys came up to bed?

22 A. They came up at three o'clock. I was surprised

23 that they adhered to the time because usually they are

24 negotiating more time.

25 Q. Did you wake up and go to bed upstairs?

1 A. I woke up and fell back asleep in the recliner.
2 Q. What time did you get up and go upstairs to bed?
3 A. Probably about 3:20.
4 Q. You and Scott sleep together in the same bedroom?
5 A. We do.
6 Q. Is that room directly upstairs from the play room
7 in the family room?
8 A. It is.
9 Q. Do you sleep with the door opened or closed?
10 A. We sleep with it generally opened.
11 Q. Where is Kirsten's room from yours?
12 A. Kirsten's room is down at the end of the hall.
13 Q. Is her room also above the play room area, family
14 room area?
15 A. No, it's above the garage.
16 Q. Whose room is closest to the family-room area
17 upstairs?
18 A. It would be ours.
19 Q. Can you hear people talking downstairs?
20 A. Yes.
21 Q. Can you hear the television if it's too loud?
22 A. Yes.
23 Q. Let's talk about the floor underneath the carpet
24 in that family room. What's the floor made of?
25 A. It's concrete foundation.

1 Q. Because of that, can you hear people walk up
2 around part of that room downstairs?
3 A. No, you can't.
4 Q. Because it's concrete?
5 A. Correct.
6 Q. Is the couch where Nick Koch slept visible from
7 the stairs going up to your room?
8 A. Part of it is.
9 Q. Is the family room itself visible from the
10 stairway going upstairs to your room?
11 A. Yes.
12 Q. From time to time in the middle of the night do
13 others in the house go downstairs to get something to eat or
14 use the restroom on occasion?
15 A. Not usually.
16 Q. What time did Scott come upstairs and go to bed?
17 A. He came up about twenty minutes after I was
18 upstairs.
19 Q. Did he brush his teeth?
20 A. He did.
21 Q. And then what happened?
22 A. And then he came to bed.
23 Q. Was he actually clothed?
24 A. Yes.
25 Q. You guys went to bed about what time?

1 A. It would have been probably 3:40.
2 Q. Were the lights on or off?
3 A. The lights were off.
4 Q. Did you fall asleep or not?
5 A. No. Because after he brushed his teeth and had
6 the light on, I was awake.
7 Q. You were awake?
8 A. I was awake.
9 Q. Did Scott fall asleep or not?
10 A. He did.
11 Q. What was the next thing that happened that night?
12 A. I heard the front door unlock.
13 Q. Did you investigate what was going on there?
14 A. No. I woke Scott up to investigate.
15 Q. Scott went downstairs?
16 A. He did.
17 Q. Did you later learn that Nick was leaving?
18 A. I did.
19 Q. Did Nick tell you why personally?
20 A. No.
21 Q. Did you later learn that he was leaving because he
22 was sick?
23 A. Correct.
24 Q. Let's stop for a moment and go back just a little
25 bit.

1 At any time from when Scott came up and brushed his teeth
2 and the time you heard the deadbolt turn, did Scott Moore
3 leave your presence?

4 A. No.

5 Q. And go downstairs?

6 A. No.

7 Q. If he had, would you have known it?

8 A. Yes.

9 Q. Are you sure about that?

10 A. Yes.

11 Q. What did you think when you heard the front door
12 click at four in the morning?

13 A. I thought someone's breaking in.

14 Q. Is that why you told Scott to investigate it?

15 A. Yes.

16 Q. That night did Nick tell you he had been touched
17 inappropriately?

18 A. No.

19 Q. The next day, did you receive a call or visit from
20 the Kochs saying: Hey, we need to talk about something that
21 happened in your home last night?

22 A. No.

23 Q. How about the next week at Scouts, did you see the
24 Kochs?

25 A. I did.

1 Q. You saw the mom and the boy?
2 A. Yes.
3 Q. Was any mention made about that?
4 A. I asked how Nick was feeling with his stomachache,
5 and I was told, "Fine. No big deal. He probably ate too much
6 cake."
7 Q. To this date, have Nick's parents called to
8 discuss the son's complaints?
9 A. No.
10 Q. Have you recently seen Lori Koch at the Wal-Mart?
11 A. I did.
12 Q. Where is that located?
13 A. It's at 151st and Metcalf, or 153rd and Metcalf.
14 Q. What were you doing there?
15 A. I was shopping for Thanksgiving.
16 Q. Did you have an unusual encounter with her?
17 A. I did.
18 Q. What happened?
19 A. I was going down one of the aisles, and I saw her,
20 and I looked away, and after I passed her I heard her yell at
21 me. And I proceeded to leave the store.
22 MR. REGAN: May I approach the witness,
23 please?
24 THE COURT: Yes.
25 Q. (By Mr. Regan) Sue, Defendant's 17, is this a fair

1 photograph of what your furniture looked like that night?
2 A. It is.
3 Q. Is this where you were sitting?
4 A. Yes.
5 Q. Scott was sitting over here?
6 A. Yes.
7 Q. Nick went to bed over here?
8 A. Yes.
9 Q. Marcus was over here?
10 A. Yes.
11 Q. And then your boy, Preston, he took your place?
12 A. Correct.
13 Q. Are the quarters pretty close from the couch to
14 the couch over here?
15 A. They are.
16 Q. How about from this chair to that chair?
17 A. It is.
18 Q. Is this a fair and accurate view of Defendant's 20
19 looking downstairs from the stairway to the couch where Nick
20 was sleeping that night?
21 A. It is.
22 Q. And in feet, is this less than ten feet away from
23 the edge of this couch to the stairway?
24 A. Yeah.
25 Q. So closer than where you are to that wall?

1 A. Yes.

2 Q. Cameras, does your family, or more importantly,
3 did your family own in May of 2010 a fancy black photography
4 camera?

5 A. No.

6 Q. And you know what this case is all about, the
7 allegations made by Nick Koch against your husband?

8 A. Yes.

9 Q. Did you take a look at every camera in the house
10 and see if there were any pictures of Nick Koch?

11 A. Yes.

12 Q. Taken on the couch with clothes on?

13 A. I did.

14 Q. Did you find any?

15 A. No.

16 Q. Did anything unusual -- did Scott seem in any way
17 unusual when he came to bed that night?

18 A. No.

19 Q. How many cameras did the family own at that time?

20 A. We owned two digital cameras, and then a video
21 camera.

22 Q. And one of the cameras, one of the digitals had a
23 broken display on the back?

24 A. Yes.

25 Q. And that night did Scott take another boy home in

1 a one-on-one situation driving the boy home?

2 A. He did.

3 Q. The last boy, he walked home?

4 A. Yes.

5 Q. At all the times you observed them, were the boys
6 fully clothed?

7 A. Yes.

8 Q. At all times you observed Scott, was he fully
9 clothed?

10 A. Yes.

11 Q. Did you see or hear any flash come from downstairs
12 under your bedroom?

13 A. No.

14 MR. REGAN: No further questions.

15 THE COURT: Cross-examination?

16 **CROSS-EXAMINATION**

17 **BY MS. RASMUSSEN:**

18 Q. Good afternoon, Ms. Moore, how are you?

19 A. Fine.

20 Q. Okay. First I want to ask you, I think I may have
21 misunderstood what you were saying earlier when Mr. Regan
22 asked you a question. He said: Prior to December, I think it
23 was 18th, that Nick had never stayed the night, and you said
24 "Not that I recall."

25 Had Nick ever stayed the night before December 2009?

1 A. I don't know.

2 Q. So you don't know if Nick ever stayed the night at
3 your house?

4 A. I believe he spent the night but not in 2009 in
5 December.

6 Q. Okay. Prior to that, at any time prior to that
7 had Nick stayed the night at your house?

8 A. He may have.

9 Q. Okay. So, and I'm not trying to trick you here.
10 I want to make sure I understand it. It wasn't uncommon for
11 Nick to sleep over at your house?

12 A. It was actually a rarity.

13 Q. So he didn't stay over that often?

14 A. Correct.

15 Q. So if other people testified that he had come over
16 to your house on frequent occasions, that would be incorrect?

17 MR. REGAN: Judge, I object to the form of
18 the question. It's a compound question. She's asking two
19 different questions: Come over or stay over.

20 THE COURT: Sustained.

21 Q. (By Ms. Rasmussen) Did he come over often to your
22 house?

23 A. Occasionally.

24 Q. Occasionally, but not frequent?

25 A. Not frequent.

1 Q. And I want to go back to this Christmas weekend.
2 You guys didn't leave for California the day the kids finished
3 finals, did you?

4 A. No.

5 Q. You had a weekend party; correct?

6 A. We had a company party at our house.

7 Q. And that would have taken place on Saturday;
8 correct?

9 A. I believe so, yes.

10 Q. Now, going fast-forward to May of 2010, you said
11 you fell asleep in the recliner downstairs?

12 A. I did.

13 Q. And you had actually a big exciting day. You were
14 getting your MBA the following day?

15 A. I was.

16 Q. What time did you have to leave for graduation?

17 A. We left about nine.

18 Q. So you had to get up and get around, and that's
19 why you didn't want all those boys staying over?

20 A. Exactly.

21 Q. And you were pretty tired falling sleep in the
22 recliner; correct?

23 A. Yes.

24 Q. And it's your testimony today though that the
25 minute you went upstairs, you didn't sleep at all the rest of

1 the night?

2 A. I didn't because I had been up and moving.

3 Q. You went upstairs. What were you doing while you
4 were upstairs?

5 A. Well, when I went upstairs, I laid down in bed,
6 but I did not fall back sleep.

7 Q. At all?

8 A. Correct.

9 Q. The rest of the night awake?

10 A. Pretty much, yes.

11 Q. You never came forward and called law enforcement
12 to say: Just so you know, the night that my dear husband is
13 accused of this I was awake the entire night right next to
14 him?

15 A. No.

16 Q. Let's talk a little bit about the floor in your
17 house. I know we talked a little bit about concrete. The
18 family room is a concrete floor; correct?

19 A. Correct.

20 Q. Are the stairs that go down to the family room
21 wooden stairs?

22 A. Yes, they are hardwood floor, and then there's one
23 step.

24 Q. One step. So this one step we're seeing in there,
25 that would be looking down at one step?

1 A. It's one.

2 MS. RASMUSSEN: I'm sorry, may I approach?

3 THE COURT: Yes.

4 MS. RASMUSSEN.

5 Q. (By Ms. Rasmussen) I want to make sure I refer to
6 this correctly. This would be Defendant's Exhibit 20. Is
7 this the one step down into the family room?

8 A. There is a step down here. There's hardwood, and
9 then there's one step in the living room.

10 Q. So just right up above it, there's a hardwood
11 surface?

12 A. In the kitchen area it's hardwood.

13 Q. And that is right here, the living room?

14 A. Yes.

15 Q. And you didn't hear, when you were awake all
16 night, you didn't hear Nick Koch get up and moving around to
17 go call his mom?

18 A. I did not.

19 Q. Okay. So all you heard was the door, front door
20 unlocking?

21 A. Yes.

22 Q. Okay. I want to go back. You know that in 2005
23 your husband was accused of some wrongdoing in a church camp?

24 A. I've heard about it, yes.

25 Q. But you were aware of that in 2005; correct?

1 A. Yes.

2 Q. Okay. And Mr. Regan asked you about this glasses
3 and shirt, but I just want to make sure.

4 In 2006 were you aware that your husband again was
5 accused of some wrongdoing at a church camp?

6 A. Yes.

7 Q. Okay. So you're aware of that back when it
8 occurred?

9 A. Yes.

10 Q. Now, I want to ask you a little bit about this.
11 You said your husband wears contacts?

12 A. Yes.

13 Q. People with contacts can't wear them all time;
14 right? I don't wear contacts, so you might need to fill me
15 in.

16 A. Well, he wears his all the time pretty much.

17 Q. Doesn't own a pair of glasses?

18 A. He does.

19 Q. He does own a pair of glasses. And you guys have
20 been through a lot together; correct?

21 A. Yes.

22 Q. And you survived these allegations from 2005 and
23 in 2006; correct?

24 A. Yes.

25 Q. Wife or mother's intuition, you still love your

1 husband very much and want to be with him?

2 A. Yes.

3 MS. RASMUSSEN: I have nothing further.

4 THE COURT: Any redirect?

5 MR. REGAN: No, ma'am, thank you.

6 THE COURT: Thank you for your testimony.

7 You may step down.

8 THE WITNESS: Thank you.

9 MR. REGAN: May it please the Court and
10 Counsel, ladies and gentlemen of the jury, at this time we
11 rest our case in chief.

12 THE COURT: Will the State have rebuttal
13 evidence?

14 MS. RASMUSSEN: I do not believe so, Your
15 Honor.

16 THE COURT: It is almost five o'clock. The
17 parties have rested their case. The evidence is submitted,
18 but we'll need time for the jury instructions for me to
19 instruct you in the law. The parties will need to give
20 closing arguments. It's my understanding that it will take at
21 least forty minutes, so we'll recess for the night and do
22 instructions and closing arguments in the morning. Of course,
23 you'll need time to deliberate. So we're going to take an
24 evening recess.

25 I will remind you of the Court's admonition. Do not

1 discuss the testimony or the case at all until it is the
2 appropriate time.

3 I will ask you to be back in the jury room a little
4 before nine, and we will start at nine o'clock. Thank you for
5 your time and attention, and please stand for the jury.

6 (Whereupon, the jury left the courtroom at
7 4:55 p.m.)

8 THE COURT: We are back on the record
9 outside the presence of the jury. The parties are in place,
10 including the defendant and his lawyer.

11 Mr. Regan just handed me a motion for judgment of
12 acquittal at the close of all the evidence. Do you have
13 anything that you want to add to your written motion?

14 MR. REGAN: No, Your Honor. I'll submit it
15 as written.

16 THE COURT: The motion was made at the
17 close of the State's case as well. I do find that the State
18 has made a prima facie case, and I'm going to deny the motion
19 for judgment of acquittal.

20 Regarding the jury instructions, you were provided a copy
21 of the draft. Do you all have time to stay and go over those
22 for the record?

23 MS. RASMUSSEN: Yes.

24 MR. REGAN: Yes.

25 THE COURT: Let's do that.

1 The first one is PIK 50.040: "It is my duty to instruct
2 you in the law" is how it begins. Is there any objection to
3 that instruction?

4 MS. RASMUSSEN: Your Honor, none by the
5 State. Just to put very briefly on the record, Mr. Regan and
6 I have discussed this. He believes all PIK Third Instructions
7 should be used for the most part. PIK Third and PIK Fourth
8 are the exact same. It's a matter of changing the numbers,
9 that one included, but I just thought I would make that note
10 before we start moving it along.

11 THE COURT: Any objection to it as written,
12 Mr. Regan?

13 MR. REGAN: No, ma'am.

14 THE COURT: The next one begins, "In your
15 fact finding you should consider and weigh everything," PIK
16 50.050. Any objection?

17 MR. REGAN: None.

18 MS. RASMUSSEN: None by the State, sorry.

19 THE COURT: PIK 50.060, "At times during
20 the trial, I ruled on admissibility of evidence," any
21 objection?

22 MS. RASMUSSEN: None by the State.

23 MR. REGAN: No, none.

24 THE COURT: PIK 50.070, "Statements,
25 arguments and remarks of counsel," any objection?

1 MR. REGAN: None.

2 MS. RASMUSSEN: No objection by the State.

3 THE COURT: PIK 50.080, "Your only concern

4 in this case," any objection?

5 MR. REGAN: None.

6 MS. RASMUSSEN: No objection by the State.

7 THE COURT: PIK 51.010, "The State has the

8 burden to prove the defendant is guilty," any objection?

9 MR. REGAN: None.

10 MS. RASMUSSEN: No objection by the State.

11 THE COURT: PIK 51.030, "Evidence has been

12 admitted tending to prove," any objection?

13 MR. REGAN: None.

14 MS. RASMUSSEN: No objection by the State.

15 THE COURT: PIK 51.060, "It is for you to

16 determine the weight and credit," any objection?

17 MS. RASMUSSEN: No objection by the State.

18 MR. REGAN: None.

19 THE COURT: PIK 51.080, a defendant in a

20 criminal trial has a constitutional right," any objection?

21 MS. RASMUSSEN: Your Honor, this is one of

22 the ones where the PIK Third and Fourth are completely

23 opposite.

24 Mr. Regan indicated that the PIK Third, or at the front

25 of the PIK Fourth book it said it should be used for crimes

1 committed after the date when ours would have occurred.

2 If he wants to use the corresponding PIK Third
3 instruction that he has listed in his proposed instructions,
4 I'm trying to find the exact number of that, and it is --

5 MR. REGAN: Which is the one you're reading
6 from now, Judge?

7 THE COURT: It is 51.080 which differs in
8 the PIK Four from PIK Three.

9 MR. REGAN: What's the lead-in paragraph?

10 THE COURT: "A defendant in a criminal
11 trial has a constitutional right not to be compelled to
12 testify."

13 MR. REGAN: We're withdrawing that, Judge.

14 MS. RASMUSSEN: I'm sorry. I'm looking
15 at -- actually, I'm sorry. He committed one element of the
16 crime intentionally. I'm sorry, did I totally imagine?

17 THE COURT: I think so.

18 MS. RASMUSSEN: Sorry, it's been a long
19 day. I'll withdraw all my talk.

20 MR. REGAN: We're withdrawing that.

21 THE COURT: You had submitted Instruction,
22 Mr. Regan, 52.13, "You must not consider the fact that the
23 defendant did not testify in arriving at your verdict."

24 MR. REGAN: We're withdrawing that.

25 THE COURT: I think I'm obligated to give

1 that instruction. I'll take a look at that tonight, but I
2 think I'm compelled to do so.

3 MS. RASMUSSEN: The State has no objection
4 to that being number nine.

5 THE COURT: The next jury instruction is
6 PIK 51.110, "The law places the burden upon the State to
7 identify the defendant." I believe this is the one that Mr.
8 Regan had requested. Is there any objection?

9 MS. RASMUSSEN: No, Your Honor.

10 THE COURT: Mr. Regan?

11 MR. REGAN: No objection, Your Honor.

12 THE COURT: PIK 52.010, "The State must
13 prove that the defendant committed one element," any
14 objection?

15 MS. RASMUSSEN: This is the one that I
16 meant to stand up on before. I was just going page for page
17 and jumped up before I listened to exactly the one you were
18 reading. This is the one where PIK Three differs
19 significantly from PIK Four. PIK Four recommends that this
20 one that you just read replace the one in the PIK Third that I
21 believe Mr. Regan had cited. So I just want to take that
22 opportunity to figure out exactly which one should be used.

23 THE COURT: I will look at that one tonight
24 as well. Mr. Regan, any comments?

25 MR. REGAN: Judge, it's our position that

1 my research in putting these instructions together that I
2 looked at the PIK Third, and I picked up the fourth edition,
3 and the fourth edition was clear on the cover page to use it
4 for crimes committed after a certain date. And my
5 recollection is the date that's targeted there is somewhat
6 after the latest dated complained of in the case.

7 THE COURT: So you're asking that the
8 instruction PIK Third be used?

9 MR. REGAN: Yes, ma'am.

10 THE COURT: I know judges in this
11 jurisdiction differ on that, but I will do further research on
12 that.

13 MS. RASMUSSEN: I was going to say that if
14 they are requesting PIK Third, and that's their request, I'll
15 keep it a very clean issue out of there, and the State will
16 have no objection to that.

17 THE COURT: Okay. I will be inclined then
18 to give PIK Third as the parties have requested. If that
19 differs, I will let you know tomorrow.

20 The next are the elements instruction, PIK 55.090, "The
21 defendant is charged with the crime of sexual battery." Any
22 objection?

23 MS. RASMUSSEN: No objection by the State.

24 MR. REGAN: None.

25 THE COURT: Likewise, PIK 55.090 count two?

1 MS. RASMUSSEN: No objection by the State.

2 MR. REGAN: None.

3 THE COURT: Mr. Regan had submitted an
4 instruction which requested the lesser-included offense of
5 battery from PIK Third 68.09. The offense of sexual battery
6 which the defendant is charged includes the lesser offense of
7 battery. Are you requesting that instruction, Mr. Regan?

8 MR. REGAN: My client has authorized me to
9 withdraw that instruction.

10 THE COURT: You're asking that that
11 instruction be withdrawn from count one and two?

12 MR. REGAN: Yes, ma'am. If my client
13 disagrees with me, I ask him to state it now.

14 THE COURT: Any disagreement, Mr. Moore?

15 THE DEFENDANT: No.

16 THE COURT: Any comment by the State?

17 MS. RASMUSSEN: No, Your Honor.

18 THE COURT: There is also an instruction
19 that Mr. Regan has submitted that the State does not, which is
20 PIK 52.21 from PIK Third, "It is for you to determine what
21 weight and credit to give the statements claimed to have been
22 made by Nicholas Koch."

23 MS. RASMUSSEN: Your Honor, there is
24 already an instruction in there that it's for the jury to
25 determine the weight and admissibility. I would ask that this

1 one not be included.

2 THE COURT: Mr. Regan?

3 MR. REGAN: Judge, in my preparation for
4 the instruction conference, I believe the books seemed to
5 authorize its submission. The facts of this case are where
6 they have been, so that's why it's in the instruction for your
7 consideration.

8 THE COURT: I'll take a look at that
9 tonight.

10 PIK 68.060, "Each crime charged against the defendant is
11 a separate and distinct offense." Any objection?

12 MS. RASMUSSEN: No objection.

13 MR. REGAN: No, ma'am.

14 THE COURT: The next one is not from PIK,
15 but it is a standard one, "Once you retire to the jury room,
16 you will be provided with these instructions." Any objection?

17 MS. RASMUSSEN: No objection by the State.

18 MR. REGAN: No, Your Honor.

19 THE COURT: PIK 68.010, "When you retire to
20 the jury room you will first select one of your members as
21 presiding juror." Any objection?

22 MS. RASMUSSEN: No objection.

23 MR. REGAN: No, Your Honor.

24 THE COURT: The next form is the verdict
25 form for count one. Any objection?

1 MS. RASMUSSEN: No objection.
2 MR. REGAN: No, Your Honor.
3 THE COURT: And the next page is the
4 verdict form for count two. Any objection?
5 MS. RASMUSSEN: No objection.
6 MR. REGAN: No, Your Honor.
7 THE COURT: Are there any instructions
8 which I have not prepared that you all wish to be included?
9 MS. RASMUSSEN: None by the State.
10 MR. REGAN: No, Judge.
11 THE COURT: Anything further?
12 MS. RASMUSSEN: Nothing by the State.
13 MR. REGAN: Not by defense, Your Honor.
14 THE COURT: I will take a look at
15 Defendant's B tonight as well. I have asked the jury to be
16 here at nine. If you could be here shortly before nine, we'll
17 take up that matter quickly on the record, as well as any
18 others that you have. We'll finalize the jury instructions
19 and begin.
20 MR. REGAN: Am I correct that closing
21 arguments will be twenty minutes each?
22 THE COURT: Is that your request?
23 MS. RASMUSSEN: No more than that?
24 THE COURT: Is twenty minutes sufficient
25 for you?

1 MR. REGAN: Yes.
2 THE COURT: Do you wish any warning, Mr.
3 Regan?
4 MR. REGAN: Yes, please, five and one.
5 THE COURT: How about the State, do you
6 wish to split?
7 MS. RASMUSSEN: Yeah, I do wish to split.
8 Right now I do wish to split twelve and eight.
9 THE COURT: With a warning?
10 MS. RASMUSSEN: Yeah, if you'd give me a
11 minute warning before I get to twelve.
12 THE COURT: And a minute on the remaining
13 eight?
14 MS. RASMUSSEN: That would be great.
15 THE COURT: Okay. Anything further then?
16 MS. RASMUSSEN: Nothing further by the
17 State?
18 MR. REGAN: No, thank you, Judge. Have a
19 good evening.
20 (Whereupon, court was adjourned at 5:07
21 p.m.)

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C E R T I F I C A T E

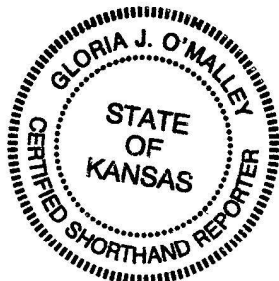
STATE OF KANSAS)

JOHNSON COUNTY)

I, Gloria J. O'Malley, a certified shorthand reporter, and the regularly appointed, qualified, and Acting Official Reporter of Division No. 13 of the Tenth Judicial District of the State of Kansas, do hereby certify that as such Official Reporter, I was present at and reported in machine shorthand the above and foregoing proceedings.

I further certify that a transcript of my shorthand notes was typed, and that the foregoing transcript is a true and correct transcript of my notes in said case to the best of my knowledge and ability,

SIGNED, OFFICIALLY SEALED, AND FILED
WITH THE CLERK OF THE DISTRICT COURT OF JOHNSON COUNTY
KANSAS.



Gloria J. O'Malley
Gloria J. O'Malley, CSR No. 1383